

Prithvi Commercial Bank

Guarantee & Bond Department

PERFORMANCE BANK GUARANTEE

Non-Judicial Stamp Paper — Value: INR 100/-

Bond No: BND-00184

Issue Date: 2023-10-26

IRREVOCABLE AND UNCONDITIONAL

To:

The Managing Director / Executive Director

The Employer / Commissioner

India

Subject: Performance Bank Guarantee for Performance Bond — Tender Ref: RFP-132019400

Dear Sir/Madam,

WHEREAS **National Infrastructure Corp. Ltd.** (hereinafter called the "Contractor/Principal") has submitted a bid vide Tender Reference **RFP-132019400** dated **2023-10-26** for the work of **Bridges Flyovers Works**, and

WHEREAS as a condition precedent for the award of the contract, the Contractor is required to furnish a Performance Bank Guarantee for **5% (five percent)** of the contract value, and

WHEREAS the Contractor has requested **Prithvi Commercial Bank** (hereinafter called the "Guarantor") to issue this Performance Bank Guarantee in your favour.

NOW THEREFORE, we, **Prithvi Commercial Bank**, do hereby irrevocably and unconditionally guarantee to pay to you, on first written demand without protest or demur, an amount not exceeding **INR 1.08 Cr** (Rupees 1.08 Crore Only), being Performance Bond amount, subject to the following terms:

TERMS AND CONDITIONS

- 1. Liability:** Our total liability under this Bank Guarantee shall not exceed INR 1.08 Cr (India Rupees Rupees 1.08 Crore Only).
- 2. Validity:** This Guarantee shall remain valid from 2023-10-26 until **2027-08-15** (the "Expiry Date") unless extended by mutual consent in writing.
- 3. Claim Period:** We shall be liable to pay under this guarantee only if a written claim or demand is served upon us on or before the Expiry Date.

4. **Enforceability:** Any claim arising under this guarantee shall be enforceable at our branch office at Mumbai or at any scheduled bank branch in India as nominated by the claimant.
5. **No Defence:** Our obligation to pay is absolute and unconditional. We shall have no right of set-off, counterclaim, or defence arising from any dispute between the Contractor and the Employer.
6. **Modification:** This guarantee shall not be affected by any change in the constitution, ownership, or control of the Contractor or the Employer.
7. **Governing Law:** This guarantee is governed by the laws of India and is subject to the exclusive jurisdiction of courts in Mumbai.

BANK DETAILS

Guarantor Bank	Prithvi Commercial Bank
Branch	Corporate Branch, Mumbai
IFSC Code	KNBX0004417
Bond Reference	BND-00184
Status	Active

AUTHORISED SIGNATORY — GUARANTOR



Authorised Officer
Prithvi Commercial Bank
Corporate Branch, Mumbai
Date: March 31, 2026

Acknowledgement by the Contractor

I/We, National Infrastructure Corp. Ltd., hereby acknowledge receipt of this Performance Bank Guarantee and confirm that the terms and conditions herein are acceptable.



Director
National Infrastructure Corp. Ltd.
Date: March 31, 2026

Instructions to Bank (on expiry)

Bank should note that on expiry of the Bond Period, the Original Bond will not be returned to the Bank. The Bank is requested to take appropriate action on or after the expiry of the bond period. Any extension, if required, shall be communicated separately by the Guarantor.